

1 ENGROSSED SENATE
2 BILL NO. 2170

By: Murdock of the Senate

3 and

4 Newton of the House

5
6 An Act relating to child custody; amending 43 O.S.
7 2021, Section 110.1a, as amended by Section 1,
8 Chapter 34, O.S.L. 2024 (43 O.S. Supp. 2025, Section
9 110.1a), which relates to supervised visitation;
10 requiring supervised visitation for persons with
11 substantiated findings by the Department of Human
12 Services for sexual abuse of a child; updating
13 statutory language; and providing an effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 43 O.S. 2021, Section 110.1a, as
16 amended by Section 1, Chapter 34, O.S.L. 2024 (43 O.S. Supp. 2025,
17 Section 110.1a), is amended to read as follows:

18 Section 110.1a. A. This section shall be known and may be
19 cited as the "Oklahoma Child Supervised Visitation Program".

20 B. It is the policy of this state to ensure that the health,
21 safety, and welfare of the child is paramount when supervised
22 visitation is ordered by the court.

23 C. ~~For purposes of the Oklahoma Child Supervised Visitation~~
24 ~~Program~~ As used in this section:

1. "Supervised visitation" means the court-ordered contact
between a noncustodial parent and one or more children of such

1 parent in the presence of a third-party person who is responsible
2 for observing and overseeing the visitation in order to provide for
3 the safety of the child and any other parties during the visitation.
4 The court may require supervised visitation when deemed necessary by
5 the court to protect the child or other parties and shall require
6 supervised visitation for any person that is the subject of a
7 referral with substantiated findings from the Department of Human
8 Services relating to sexual abuse of a child;

9 2. An "alcohol-dependent person" has the same meaning as such
10 term is defined in Section 3-403 of Title 43A of the Oklahoma
11 Statutes;

12 3. A "drug-dependent person" has the same meaning as such term
13 is defined in Section 3-403 of Title 43A of the Oklahoma Statutes;
14 and

15 4. "Domestic abuse" has the same meaning as such term is
16 defined in Section 60.1 of Title 22 of the Oklahoma Statutes.

17 D. 1. The associate district judge in each county within this
18 state may select trained volunteers to provide supervised visitation
19 pursuant to the Oklahoma Child Supervised Visitation Program.

20 2. The associate district judge of each county may appoint a
21 judicial district supervised visitation team to:

- 22 a. identify public and private entities which will be
23 willing to provide location sites for purposes of the
24 Oklahoma Child Supervised Visitation Program,

- 1 b. identify individuals who will be willing to serve as
2 third-party persons to observe and oversee court-
3 ordered supervised visitations,
4 c. establish training requirements for volunteers,
5 d. identify programs which may be available for the
6 training of the volunteers including, but not limited
7 to, the Department of Human Services, Office of the
8 Attorney General, child advocacy centers, domestic
9 violence groups, and the Department of Mental Health
10 and Substance Abuse Services,
11 e. develop written protocol for handling supervised
12 visitations so as to provide safety of the child and
13 other parties during the supervised visitation,
14 f. develop application forms for volunteers applying for
15 the Oklahoma Child Supervised Visitation Program.
16 Information listed on the form shall include, but not
17 be limited to:
18 (1) name, address and phone number of the volunteer,
19 (2) place of employment and phone number of the
20 volunteer,
21 (3) areas of expertise,
22 (4) listing of professional training in areas
23 including, but not limited to, child abuse,
24

1 domestic abuse, alcohol or drug abuse, mental
2 illness or conflict management,

3 (5) consent form specifying release of information,
4 and

5 (6) professional references, and

6 g. identify which information of the parties and the
7 child will be confidential and which may be available
8 to others.

9 3. From recommendations of the team established pursuant to
10 this subsection, the associate district judge in each county within
11 this state may authorize one or more public or private agencies to
12 provide location sites for the Oklahoma Child Supervised Visitation
13 Program. A district judge may require either party requesting
14 supervised visitation of a child to identify a trained third-party
15 volunteer to observe and oversee the visitation. A district court
16 shall not:

17 a. require any state agency location or state employee to
18 observe and oversee any supervised visitation, or

19 b. appoint a third party to observe and oversee a
20 supervised visitation who has not received the
21 training as specified by the judicial district
22 supervised visitation team unless agreed to by the
23 parties.
24

1 4. A participating public or private agency location site may
2 charge a fee for each visit.

3 E. Prior to approval of any third-party volunteer to observe
4 and oversee visitation under this section, the court shall make a
5 written determination of the fitness of the volunteer by reviewing
6 information including, but not limited to:

7 1. A national criminal history record check conducted by the
8 Oklahoma State Bureau of Investigation within one (1) year prior to
9 the appointment of the volunteer;

10 2. A sworn affidavit from the volunteer accepting the rules of
11 supervision and whether the volunteer:

12 a. is an alcohol- or drug-dependent person,

13 b. is residing with a person who is required by law to
14 register pursuant to the Sex Offenders Registration
15 Act of this state or any other state,

16 c. is residing with a person who has been convicted of
17 domestic abuse within the past five (5) years, or

18 d. has had custody, guardianship, or visitation rights
19 terminated to any child; and

20 3. Any testimony by the potential volunteer or other witness
21 testimony deemed necessary by the court to determine the fitness of
22 the volunteer.

23 F. The protocol for supervised visitation established by each
24 judicial district supervised visitation team shall require that:

1 1. The volunteer supervising the visitation shall be able to
2 see and hear all interactions between the supervised parent and the
3 child; and

4 2. If the court determines that the supervised parent has
5 exhibited suicidal or violent behavior, all supervised visitation
6 shall occur within a professional setting unless and until the
7 supervised parent has submitted a non-self-reporting psychological
8 evaluation to the court.

9 G. The protocol for supervised visitation established by each
10 judicial district supervised visitation team may require that:

11 1. The location site require each participant who has court-
12 ordered supervised visitation for a child and who is participating
13 in the supervised visitation program to sign a time log upon arrival
14 and departure. The agency location site must have an employee
15 assigned to verify identification of each participant, initial each
16 signature, and record the time of arrival and departure of each
17 person; and

18 2. The agency location site also contain information on each
19 client case including, but not limited to:

20 a. a copy of the court order requiring supervised
21 visitation, and

22 b. the name of individuals authorized to pick up or
23 deliver a child to the agency location site for
24 supervised visitation.

1 H. Each judicial district supervised visitation team may
2 include, but not be limited to:

- 3 1. Mental health professionals;
- 4 2. Police officers or other law enforcement agents;
- 5 3. Medical personnel;
- 6 4. Child protective services workers;
- 7 5. Child advocacy individuals; and
- 8 6. The district attorney or designee.

9 I. An associate district judge of a county, the judicial
10 district supervised visitation team created pursuant to this section
11 and the Administrative Office of the Courts may develop an
12 informational brochure outlining the provisions of the Oklahoma
13 Child Supervised Visitation Program and procedures to be used by
14 volunteers in that judicial district. The brochure may be
15 distributed through the municipal and district court, social service
16 agency centers, county health departments, hospitals, crisis or
17 counseling centers, and community action agencies.

18 J. Except for acts of dishonesty, willful criminal acts, or
19 gross negligence, no member of the judicial district supervised
20 visitation team or volunteer shall be charged personally with any
21 liability whatsoever by reason of any act or omission committed or
22 suffered in the performance of the duties pursuant to the provisions
23 of this section.

K. The provisions of this section shall not apply to cases subject to the Oklahoma Children's Code and the Oklahoma Juvenile Code.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives